

25CHCV01785 25CHCV01785

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PLAINTIFF/CROSS-DEFENDANTS' MOTION TO ENFORCE SETTLEMENT

AND DISMISSAL OF CROSS-COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION

664.6

Motion filed on March 27, 2026.

MOVING PARTY: Plaintiff/Cross-Defendant Saeed Zarei and

Cross-Defendant LA Ride & Drive

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Moving parties seek an order enforcing the

settlement agreement, dismissing Defendant/Cross-Complainant Leila Soodbakhsh's

cross-complaint with prejudice, requiring Soodbakhsh to withdraw her BBB

complaint, restraining further statements or reviews addressing the settled dispute, awarding attorney's fees and costs, and retaining jurisdiction under Code of Civil Procedure section 664.6.

RULING: Granted in part.

BACKGROUND

On May 23, 2025, Plaintiff Saeed Zarei filed this action. Plaintiff filed the operative First Amended Complaint on June 3, 2025. On July 22, 2025, Soodbakhsh filed a Cross-Complaint against Zarei, LA Ride & Drive, and Roes 1 through 20.

Zarei and LA Ride & Drive filed this motion on March 27, 2026. No opposition was filed. After the June 4, 2026 hearing, the Court continued the hearing to permit supplemental briefing. Moving parties thereafter filed a supplemental brief, amended proposed order, and request for dismissal.

LEGAL STANDARD

CCP § 664.6 states: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the

settlement until performance in full of the terms of the settlement.”

Strict compliance with the statutory requirements is

necessary before a court can enforce a settlement agreement under this

statute. (Sully-Miller Contracting

Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30,

37.) To enforce a written settlement

agreement under CCP section 664.6, the following three elements must be met:

(1) the parties must have come to a meeting of the minds on all material points;

(2) there must be a writing that contains the material terms of the agreement;

and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick

(1998) 60 Cal.App.4th 793, 797-98.)

CCP § 664.6 “require[s] the signatures of the parties

seeking to enforce the agreement under [Code of Civil Procedure] section 664.6

and against whom the agreement is sought to be enforced.” (J.B.B. Investment Partners, Ltd. v. Fair

(2014) 232 Cal.App.4th 974, 985.) CCP §

664.6’s “requirement of a ‘writing signed by the parties’ must be read to apply

to all parties bringing the section 664.6 motion and against whom the motion is

directed.” (Harris v. Rudin, Richman

& Appel (1999) 74 Cal.App.4th 299, 306; see Sully-Miller

Contracting Co. v. Gledson/Cashman Const., Inc. (2002) 103 Cal.App.4th 30,

35-37 [“A written settlement agreement is not enforceable under section 664.6

unless it is signed by all of the parties to the agreement, not merely the

parties against whom the agreement is sought to be enforced.”].) “A procedure in which a settlement is

evidenced by one writing signed by both sides minimizes the possibility of ...

dispute[s] and legitimizes the summary nature of the section 664.6 procedure.” (Robertson v. Chen (1996) 44

Cal.App.4th 1290, 1293.)

DISCUSSION

The Settlement Agreement states it is between “SAEED ZAREI individually, LA

RIDE N DRIVE, a California Corporation and LA RIDE N DRIVE MASTERS, a

California Corporation (‘Claimant’) and LEILA SOODBAKHSH an individual and

ALIREZA KALABI. (‘Respondent’).” (Yadidi Decl., Ex. D.) The Agreement bears

signatures for Saeed Zarei, LA Ride N Drive, LA Ride N Drive Masters, Leila

Soodbakhsh, and Alireza Kalaei. (Ibid.) Yadidi declares Plaintiff’s counsel

received the fully executed Settlement Agreement on December 17, 2025. (Yadidi

Decl., ¶ 7.)

Section 2 provides: “In full, final and complete settlement

of all Claims arising out of or related to the case #25CHCV01785 Claimant

hereby agrees to deliver to LEILA SOODBAKHSH or her agent the title and

possession of 2019 Ford Escape with the VIN 1FMCU0F7XKUA55245 by December 15,

2025 in similar condition as it was at the time Claimant took possession per

Exhibit A with 107,526 mileage at the time of delivery to Respondent and

transferring the title of the above mentioned vehicle to LEILA SOODBAKHSH." (Yadidi

Decl., Ex. D.)

Section 2 further provides: "Claimant shall dismiss

Respondents only as to case # 25CHCV01785 with prejudice within five (5) days

from the date of execution of this Agreement. Simultaneously with the execution

of this Agreement, Respondent LEILA SOODBAKHSH shall dismiss the Cross

Complaint against Claimant with prejudice." (Yadidi Decl., Ex. D.)

Zarei declares he executed the Settlement Agreement on

December 15, 2025, made the 2019 Ford Escape available for pickup on December

18, 2025, and that the vehicle was retrieved by Soodbakhsh's authorized agent.

(Zarei Decl., ¶¶ 6-7.) Zarei further declares he returned the vehicle "in

substantially the same condition as when it was originally received," the

vehicle "already had a defective transmission," and "[a]t no time did I drive

or repair the subject vehicle." (Zarei Decl., ¶¶ 9-10.) No opposition was filed

disputing this showing.

On June 18, 2026, Zarei filed a request for dismissal with

prejudice as to Soodbakhsh and Ali Kalie. Soodbakhsh has not dismissed the

Cross-Complaint.

The motion is granted in part. The Settlement Agreement is

enforced. Soodbakhsh's Cross-Complaint against Zarei and LA Ride & Drive is dismissed with prejudice.

The requests to retain jurisdiction and for an order concerning the pending Small Claims action are denied. The Court is enforcing the dismissal term now, and moving parties identify no remaining settlement performance requiring future enforcement. The Settlement Agreement does not require the Court to direct how any vehicle-condition damages dispute will proceed. Section 664.6 permits enforcement of the parties' settlement terms; it does not permit the Court to add terms the parties did not include. (Hernandez v. Board of Education (2004) 126 Cal.App.4th 1161, 1176; J.B.B.

Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 984.)

Attorney's Fees and Costs

Section 14 of the Settlement Agreement provides: "[I]f any legal action or other proceeding is brought for the enforcement of this Agreement, or because of an alleged breach, or default in connection with this Agreement or any provision hereof, the prevailing Party shall be entitled to recover its attorneys' fees and court costs incurred to enforce this Agreement." (Yadidi Decl., Ex. D, § 14.)

Moving parties request \$3,825, based on 7 hours preparing and reviewing the motion, 2 anticipated hours to review opposition and prepare

a reply, 1 anticipated hour for the hearing, and \$75 in filing and e-filing

costs. (Yadidi Decl., ¶ 13.) The Court finds 7 hours excessive for preparing

and reviewing this motion. No opposition was filed, and the anticipated 2 hours

to review opposition and prepare a reply were not incurred. The supplemental

briefing was limited to the issues identified after the June 4, 2026 hearing.

The request is granted in the reduced amount of \$1,575. This

amount consists of 2 hours to prepare the motion, 1 hour to prepare the

supplemental brief, and 1 hour to appear at the hearing, at counsel's hourly

rate of \$375, plus \$75 in filing and e-filing costs.

CONCLUSION

Plaintiff/Cross-Defendants' Motion to Enforce Settlement and Dismissal of

Cross-Complaint Pursuant to Code of Civil Procedure section 664.6 is granted in

part.

The Settlement Agreement is enforced.

Defendant/Cross-Complainant Leila Soodbakhsh's Cross-Complaint against Saeed

Zarei and LA Ride & Drive is dismissed with prejudice.

Moving parties are awarded attorney's fees and costs in the

reduced amount of \$1,575.

The requests to retain jurisdiction and to order the parties

to resolve vehicle-condition damages exclusively through the pending Small

Claims action are denied.

This order does not affect the First Amended Complaint as to

defaulted Defendants Nikoloz Jachvadze and Behzad Kalai.